

establish that Biarritz was a subcontractor as a matter of law.

Notably, IdaPac appears to anticipate that CIC's dispute that Biarritz was a subcontractor and offers alter ego evidence. If such a showing is required to show Biarritz is a subcontractor (and it is), IdaPac's contention that alter ego is *not* part of the initial burden is incorrect. The omission of the alter ego showing from the separate statement is, as a matter of procedure, an impediment to granting judgment here.

C. Disputes of Material Fact

Even if the Court were to conclude that IdaPac had met its initial burden (it has not), the opposing papers demonstrate material factual disputes with respect to the issue of alter ego liability. Anthony Froyd, whose declaration here is key to showing alter ego, previously testified at deposition that Blackstone and Biarritz are *separate* companies. (CIC response to SSUMF, Additional Fact Nos. 43-44.)

While IdaPac objects to the testimony on hearsay grounds, and on the grounds that deposition excerpt does not satisfy requirements for the "former testimony" exception, the testimony falls under another exception as it constitutes a "prior inconsistent statement" pursuant to Evidence Code, section 1235. Further, the testimony directly contradicts Froyd's statements that support an alter ego theory.

Because IdaPac has shown that it provided materials pursuant to a contract with Biarritz, which is not necessarily a subcontractor, it remains a question of fact whether IdaPac was instructed to provide materials by anyone described in Civil Code section 8404, subdivision (b).

Though the Court need not reach the question in this ruling, assuming IdaPac can establish a theory of alter ego liability, IdaPac will still be required to establish that it can assert such theory (involving the lack of separate identity between Blackstone and Biarritz) against Buffalo, which CIC contends was an "innocent third party."

16. 1:30 PM CASE NUMBER: C24-03039

CASE NAME: MELANIE ROSE VS. FIRST WALNUT CREEK MUTUAL

***HEARING ON MOTION IN RE: RECONSIDER COURT'S SUA SPONTE CONSOLIDATION ORDER OR ALTERNATIVE RELIEF UNDER CCP 473(B)**

FILED BY: ROSE, MELANIE

TENTATIVE RULING:

Introduction

Before the Court is Plaintiff Melanie Rose's Motion Reconsideration of the Court's January 26, 2026, sua sponte order consolidating Case No. C24-03039 with Case No. C25-02665, which was made during a case management conference.

For the reasons set forth below Plaintiff's Motion for Reconsideration is **denied**. The Court clarifies that Case No. C24-03039 and Case No. C25-02665 are **consolidated only for the purposes of trial**.

Procedural and Factual Background

During a case management conference on January 26, 2026, the Court, on its own motion, issued an order to consolidate Case No. C24-03039 with Case No. C25-02665, which was made during a case

management conference.

Plaintiff filed her original Complaint in Case No. C24-03039 against First Walnut Creek Mutual on November 12, 2024 (Occupancy Case). The gravamen of this suit is Defendant First Walnut Creek Mutual's denying Plaintiff's continued occupancy, which she applied for in April 2022, because of her age and violating Plaintiff's occupancy rights secured by Civil Code 51.3(e) via threats to sell her home, followed by sustained retaliation.

Plaintiff filed her original Complaint in Case No. C25-02665 against Golden Rain Foundation of Walnut Creek on November 19, 2025 (Fee Policy Case). The gravamen of this suit is Golden Rain Foundation's differential membership transfer fee (MTF) Policy 102.4c. GRF's corporate policy provides a fee exemption only to those who inherit their membership from a spouse or domestic partner and in December 2022, Plaintiff was denied this fee exemption, because she inherited her membership from a parent and not from GRF's stated preference of spouse.

Standard of Review

Code of Civil Procedure section 1008(a) provides that a party affected by a prior court order may, "based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order." (Cal. Code Civ. Proc. § 1008(a).) Such an application must be accompanied by an affidavit that states "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (*Ibid.*)

However, a trial court has inherent power to reconsider its own interim rulings even in the absence of a change in law or new or different facts or circumstances. (*Pinela v. Neiman Marcus Group, Inc.* (2015) 238 Cal.App.4th 227, 237; *Brown, Winfield & Canzoneri, Inc. v. Superior Court* (2010) 47 Cal.4th 1233, 1248 ("*Brown*").) "This authority derives from the judiciary's fundamental, constitutionally mandated function to resolve specific controversies between the parties." (*Brown*, 47 Cal.4th at 1248.)

Analysis

Timeliness

Plaintiff posits that her motion is filed timely because the statutory deadline for filing a motion to reconsider under CCP § 1008(a) has not yet been triggered. A Notice of Entry of Order was not filed in either case. Plaintiff claims that she did not waive notice and has not been served a Notice of Entry of Order, or the Minute Order by any of the parties or the Court. The Court does not see any proof of service of the Minute Order on file. Defendant First Walnut Creek Mutual's opposition is silent as to this argument. The Court considers Plaintiff's motion timely.

Consolidation

If there are pending actions before the court that involve "a common question of law or fact," section 1048 permits the trial court to "order a joint hearing or trial" or to "order all the actions consolidated." (§ 1048, subd. (a).) "Under the statute and the case law, there are thus two types of consolidation: a consolidation for purposes of trial only, where the two actions remain otherwise separate; and a complete consolidation or consolidation for all purposes." (*Hamilton v. Asbestos Corp.* (2000) 22 Cal.4th 1127, 1147.)

Common Question of Law or Fact

There are common questions of law and fact between the two cases. Both cases share significant facts because they both share the same triggering event, Plaintiff's inheritance of her mother's property. Both cases share common questions of law because both allege violations of the Unruh Civil Rights Act and Fair Employment and Housing Act (FEHA). The main difference is that Plaintiff complains about both age and marital status discrimination in the Occupancy Case and complains of marital status discrimination in the Fee Policy Case.

Two Types of Consolidation

When two actions are consolidated "for all purposes," "the two actions are merged into a single proceeding under one case number and result in only one verdict or set of findings and one judgment." (*Hamilton v. Asbestos Corp.*, *supra*, 22 Cal.4th at p. 1147; see *Sanchez v. Superior Court* (1988) 203 Cal.App.3d 1391, 1396 ["the pleadings are regarded as merged, one set of findings is made, and one judgment is rendered"].) And "'for the purposes of all further proceedings, the cases are to be treated as if the causes had been united originally.'" (*McClure v. Donovan* (1949) 33 Cal.2d 717, 722.) "In other words, the actions are viewed as if the same plaintiff or plaintiffs had filed a single complaint on joined causes of action against the same defendant or defendants." (*Villa Zinfandel, LLC v. Bearman* (2025) 116 Cal.App.5th 848, 862-863; citing 4 Witkin, Cal. Procedure (6th ed. 2023), Pleading, § 360.)

The January 26, 2026, minutes does not specify if the cases are consolidated for all purposes or are consolidated for trial only. (C25-02665 January 26, 2026, Minute Order.)

Both cases revolve around the same triggering event of Plaintiff's inheritance of her mother's real property. Plaintiff accurately points out that the Defendants are different in each case and the causes of action against each of them require different evidence with some overlap. These differences are enough for the Court to clarify its January 26, 2026, order to order C25-02665 consolidated with the lead case C24-03039 for the purposes of trial only.

Conclusion

Plaintiff's Motion for Reconsideration is **denied**. The Court clarifies that Case No. C24-03039 and Case No. C25-02665 are **consolidated only for the purposes of trial**.

17. 1:30 PM CASE NUMBER: C25-00195
CASE NAME: STATE FARM GENERAL INSURANCE COMPANY VS. DOES 1-20
***HEARING ON MOTION IN RE: LEAVE TO INTERVENE**
FILED BY: STATE FARM GENERAL INSURANCE COMPANY
TENTATIVE RULING:

This case arises out of alleged water damage resulting from a cracked pipe, occurring at the property of Jay and Stephanie Snyder. The case was filed by their insurer, State Farm, as a subrogation action. In this motion, the Snyders seek to intervene as plaintiffs, seeking to recover out-of-pocket losses not covered by State Farm. The motion is **unopposed**, and indeed it is unexplained why it was not stipulated. The motion is **granted**.

Moving party shall prepare a proposed order that conforms to this ruling, attaching a copy of this